

22STCV34709 22STCV34709

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-28

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Case Number: 22STCV34709 Hearing Date: July 28, 2026 Dept: 731

[TENTATIVE] ORDER RE: MOTION

TO BE RELIEVED AS COUNSEL—CIVIL

Moving Party: Counsel, Moses O. Onyejekwe, Esq.

Opposing Party: None

Notice: OK

Counsel for Defendants Jamar Harten

and First Class Tax & Consulting, Moses O. Onyejekwe, Esq., moves for court orders relieving him of representation of these Defendants.

After review, the Court finds relief is not merited here.

Trial is scheduled in this action for September 21, 2026, and there is absolutely no clarity in the record regarding whether new counsel is immediately assuming representation or how Defendants, including a corporate entity that cannot represent itself at trial, will be able to move forward on September 21, 2026. California courts should consider whether the attorney's "withdrawal can be accomplished without undue prejudice to the client's interests." (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) Without more information regarding who will represent Defendants moving forward, such prejudice is too great to grant relief here.

Moreover, the motion should also be denied if it will cause undue delay in the proceeding or cause injustice. (Mandell

v. Superior Court (1977) 67 Cal.App.3d 1, 4.) If the motions are here granted, the trial in this action may be continued, causing undue delay.

Counsel Moses O. Onyejekwe's motions are thus DENIED, without prejudice.

Defendants Jamar Harten and First Class Tax & Consulting are ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.